

§ 844. Prisoner as used in Government section 844.6(a)(2), encompasses “a ‘ward of a juvenile court declared under Welf. & Inst. Code section 602 and under placement by” the court. (*Patricia J. v. Rio Linda Union Sch. Dist.* (1976) 61 Cal.App.3d 278, 286.)

Plaintiff’s position is that section 844.6 is unavailable because Civil Code section 52.1, subdivision (n), clarified that such immunity does not apply to custodial-officer Bane Act claims, and because Plaintiff has adequately pleaded vicarious liability under sections 815.2 and 820.

Gov. Code section 820 provides that “a public employee is liable for the injury caused by his act or omission to the same extent as a private person.” (Gov. Code §820.) However, at issue in this motion is not whether or not Defendant Smith is immune from suit or subject to the provisions of Gov. Code §820, but whether County is immune from suit pursuant to Gov. Code §844.6, or if not, whether County may be vicariously liable for Smith’s actions under the negligence theories presented.

Plaintiff’s claims that 844.6 immunity does not apply because of the Bane Act claims against Officer Smith, lack merit. As previously addressed, Plaintiff’s Bane Act claim against County was subject to tort claim requirements, with which she did not comply.

As to Plaintiff’s claims that she has properly alleged a vicarious liability claim against County pursuant to Gov. Code §815.2, do not in any fashion address why such claims are not immune pursuant to Gov. Code §844.6.

“[A]ny general theory of liability against public entities [such as Gov. Code §815.2] is subordinate to the specific immunity provision for injuries to prisoners in section 844.6.” (*Towery v. State of California* (2017) 14 Cal.App.5th 226, 233.) Plaintiff has cited no authority to the contrary, nor presented any other argument upon which this court should find that she has stated claims for vicarious liability for negligence based on Gov. Code §815.2 that are not subject to the specific immunity provision set forth in Gov. Code §844.6. “Government Code section 844.6 does not leave any ambiguity about its applicability to a claim against a public entity under some other statute, such as [Gov. Code section 815.2], that simply creates a general legal duty.” Accordingly, the court sustains, without leave to amend, as to the 3rd – 5th causes of action unless Plaintiff can provide the court with authority to the contrary.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504877	DOE ES VS COUNTY OF RIVERSIDE	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Off Calendar based on the Ruling on the Demurrer